

FEDERAL MARITIME COMMISSION

Docket No. 23-13

USL AUTO EXPORTING INC.,

COMPLAINANT,

v.

EASY SHIPPING CORPORATION,

RESPONDENT.

**COMPLAINANT’S MOTION TO SUPPLEMENT THE RECORD AND COMPEL
RESPONDENT TO PRODUCE CORRESPONDENCE**

Comes now the Complainant, USL Auto Exporting Inc., by and through the undersigned vice president, and respectfully moves the Federal Maritime Commission (“Commission”) for **leave to supplement the record with newly discovered evidence and to compel Respondent, Easy Shipping Corporation**, to produce correspondence related to the returned shipment at issue.

1. Complainant has already filed a Motion for Leave to Issue a Subpoena to CMA CGM, seeking critical records related to the shipment. However, because Respondent was a direct party to these communications, it is necessary and appropriate for Respondent to produce its own internal and external correspondence related to this matter.
2. Furthermore, newly discovered evidence demonstrates that Respondent knowingly provided false statements in its response to the Commission. Respondent falsely claimed that it does not handle exports into the United States, yet publicly available trade data contradicts this assertion.

I. INTRODUCTION

3. Complainant seeks to supplement the record with new evidence that has come to light after the submission of final briefs and the close of discovery. This evidence is highly relevant to the claims at issue and directly impacts the factual determinations to be made by the Commission.¹

4. Additionally, the Commission has already granted Respondent additional time to submit its filings, acknowledging that procedural timing should not hinder the fair adjudication of this case. In light of this accommodation, Complainant should likewise be permitted to introduce newly obtained evidence that is crucial to the resolution of this dispute.²

5. Pursuant to 46 C.F.R. § 502.147(a), the presiding officer has the discretion to permit the introduction of additional evidence if it is material and necessary to the proceeding. Given that this evidence was previously unavailable and could not have been obtained through reasonable diligence, Complainant respectfully requests that the record be supplemented accordingly.³

6. Further, under 46 C.F.R. § 502.150, the Commission has the authority to order a party to produce documents relevant to the case. Respondent must be compelled to provide all correspondence, internal and external, related to this shipment, including communications with CMA CGM, consignees, and any other involved parties.

II. RESPONDENT'S FALSE STATEMENT REGARDING IMPORTING ACTIVITIES

7. Respondent falsely claimed that it does not handle exports into the United States and does not file Importer Security Filings (ISF). In its response to the Commission, Respondent stated:

“Respondent did not file the Importer Security Filing (ISF) for the container returned to Savannah. Respondent does not handle exporting into the United States.”

¹ . Order Discharging Show Cause Order and Setting New Deadline at 4, Docket No. 23-13 (FMC Jan. 30, 2025) states:

"The interests of justice will be served by entering a decision on the merits, there is no evidence that doing so will unduly delay the proceeding or result in prejudice to USL, and there is no evidence that Easy Shipping acted in bad faith."

² . See also *id*

³ . 46 C.F.R. § 502.147(a) (2024) states:

"The presiding officer may, at any time prior to the close of the hearing, permit the testimony of additional witnesses or the introduction of additional exhibits if such evidence is found to be material and necessary to the proceeding."

Resp't's Answers to the Comm'n's Order for Supplemental Information at 6, *USL Auto Exporting Inc. v. Easy Shipping Corp.*, Docket No. 23-13 (FMC 2025).

8. However, publicly available trade data directly contradicts Respondent's assertion. According to Panjiva, an independent and widely used trade data platform, Respondent has been documented as an importer in at least 19 shipments into the United States.⁴

9. This direct contradiction between Respondent's sworn statement and objective trade data demonstrates that Respondent knowingly provided false information to the Commission. Given this material misrepresentation, Complainant requests that the Commission take this false statement into consideration and grant appropriate relief, including adverse inferences against Respondent's credibility.

III. RELEVANCE OF THE NEWLY DISCOVERED EVIDENCE AND REQUEST FOR CORRESPONDENCE

10. The Evidence is Highly Material and Relevant

1. Complainant has obtained verified information from Panjiva.com confirming that Respondent, Easy Shipping Corporation, had a returned container (TCKU6353393) under Bill of Lading CMDUNAM6150781B with CMA CGM.
2. The consignee for this shipment was Drop Atlas Shipping Agencies Co.
3. This container was originally loaded in Respondent's warehouse in Chicago and later returned due to a pickup VIN number issue.
4. The return of this shipment directly relates to Complainant's claims regarding Respondent's mismanagement of cargo destined for Libya and demonstrates a pattern of returned shipments under Respondent's handling.

11. Respondent's Fraudulent Misrepresentation of Cargo in the Bill of Lading

1. Respondent fraudulently misrepresented the cargo description in the Bill of Lading (BOL) for container TCKU6353393 under Bill of Lading CMDUNAM6150781B.
2. The BOL, attached as Exhibit A, lists the following vehicles:
 - a. 2018 Hyundai Santa Fe (VIN: 5NMSG13D88H196113)
 - b. 2018 Nissan Murano (VIN: 1N6ED27T74C480495)
 - c. 2018 Kia Soul (VIN: KNDJT2A69D7585619)
 - d. 2018 Honda Accord (VIN: 1HGCR2F7XFA070144)

⁴ . See *Easy Shipping Corp.*, PANJIVA, <https://panjiva.com/Easy-Shipping/38927693> (last visited [January 31, 2025]).

3. However, official records confirm that the 2018 Honda Accord listed on the BOL is actually a pickup vehicle, not a sedan. The Subpoena to CMA CGM will prevail the truth about that.
4. This misrepresentation raises serious concerns about Respondent's credibility and honesty in its filings with the Commission.
 - a. *See* n (Ex. U, CX_141)⁵ - Bill of Lading CMDUNAM6150781B.
5. Further, evidence indicates that Respondent engaged in the same fraudulent misrepresentation in other instances, as seen with the following vehicles:
 - a. 2008 Hyundai Santa Fe, GLS (VIN: 5NMSG13D88H196113)
 - b. 2004 Nissan Frontier (VIN: 1N6ED27T74C480495)
 - c. 2013 Kia Soul (VIN: KNDJT2A69D7536159)
 - d. 2015 Honda Accord, Sedan EX (VIN: 1HGCR2F7XFA070144)⁶
6. This pattern of fraudulent vehicle misclassification mirrors the deception in the present case, further proving that Respondent is engaged in intentional misrepresentation of shipment details.
7. Given these facts, Complainant requests that the Commission take this false statement into consideration and grant appropriate relief, including adverse inferences against Respondent's credibility.

12. Complainant Has Already Filed a Motion for a Subpoena to CMA CGM

1. Complainant has filed a Motion for Leave to Issue a Subpoena to CMA CGM seeking all documents related to the returned shipment. However, Respondent was a direct party to these communications and must independently produce its own internal and external correspondence related to this shipment.
2. While the subpoena to CMA CGM will yield additional records, Respondent cannot refuse to provide documents already in its possession.

13. Request to Compel Respondent to Produce Correspondence

Complainant respectfully requests that the Commission order Respondent to produce the following records:

1. Emails, messages, and internal communications related to the shipment.
2. Correspondence with CMA CGM regarding the return of this shipment.
3. Communications with the consignee, Drop Atlas Shipping Agencies Co., regarding the return.

⁵ . (Ex. U, CX_141) has been created for this motion and numbered sequentially after the previous Appendix and Exhibits.

⁶ . See also *id.*

4. Any internal notes or reports regarding the reason for the return of container TCKU6353393.

14. Allowing the Evidence Will Not Prejudice Respondent⁷

1. The Commission has already granted procedural accommodations to Respondent, recognizing that fairness requires flexibility in managing the record.
2. Respondent will not be unduly prejudiced, as they will have an opportunity to respond if necessary.
3. The admission of this evidence is in the interest of fairness and will aid the Commission in reaching an accurate and just resolution of the case.⁸

IV. RELIEF REQUESTED

15. For the foregoing reasons, Complainant respectfully requests that the Commission:

1. Grant this Motion to Supplement the Record with the newly discovered evidence.
2. Admit the attached evidence into the case record for consideration.
3. Compel Respondent to produce all correspondence, including internal and external communications, related to the return of container TCKU6353393.
4. Acknowledge that Complainant has already filed a Motion for Leave to Issue a Subpoena to CMA CGM, which will provide additional supporting records.
5. Consider appropriate sanctions or adverse inferences due to Respondent's false statements to the Commission.
6. Grant such further relief as the Commission deems just and appropriate.

V. CONCLUSION

16. The new evidence is material, relevant, and necessary for the fair adjudication of this matter. Accordingly, Complainant respectfully requests that this Motion to Supplement the Record and Motion to Compel Production of Correspondence be granted in its entirety.

DATED: January 31, 2025

⁷ . 46 C.F.R. § 502.141(f) (2024) states: "The presiding officer may permit amendments to pleadings when justice so requires."

⁸ . See 46 C.F.R. § 502.147(a) (2024).

Respectfully submitted,

USL AUTO EXPORTING INC.,

By: /s/ ANIS HOUSSEIN

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Vice President for COMPLAINANT

USL AUTO EXPORTING INC.

CERTIFICATE OF SERVICE

I hereby certify that on January 31, 2025, a true and correct copy of this COMPLAINANT'S MOTION TO SUPPLEMENT THE RECORD AND COMPEL RESPONDENT TO PRODUCE CORRESPONDENCE was served via electronic mail and/or certified mail to the following:

- **Counsel for Respondent, Easy Shipping Corporation**

Fadi Y. Rafati

Rafati, Ward & Associates, P.C.

Email: frafati@rafatilegal.com

Anis Houssein

Anis Houssein

Vice President for COMPLAINANT
USL AUTO EXPORTING INC.,

**USL AUTO EXPORTING INC.'s
EXHIBIT U**

BILL OF LADING

SUPPLIER/SHIPPER	BUYER/CONSIGNEE
EASY SHIPPING CORPORATION 255 E 167TH STREET HARVEY UNITED STATES	DROP ALATLAS SHIPPING AGENCIES CO KHOMS PORT MAIN ROAD PO BOX 8281 KHOMS

ORIGIN	DESTINATION	PLACE OF RECEIPT
42776 Fos, France	4601 New York/Newark Area, Newark, New Jersey	CHICAGO, IL

NOTIFY PARTY NAME	BILL TYPE	House Bill	BOL
DROP ALATLAS SHIPPING AGENCIES CO	REGULAR BILL		CMDUNAM6150781B

Actual Arrival Date	Vessel Name	Container Number	Estimate Arrival Date	Vessel Country Code
2023-08-11	CHICAGO EXPRESS	TCKU6353393	2023-08-07	DE

Cargo Description
RFI FUEL TYPE LOI RECEIVED LOI RCVD COD MAIL SENT TO TRADE APPROVAL ROB COMPLETED PIECES 2018 HYUNDAI SANTA FE TCKU6353393 001 VIN:5NMSG13D88H196113 2018 NISSAN MURANO VIN:1N6ED27T74C480495 2018 KIA SOUL VIN:KNDJT2A69D7585619 2018 HONDA ACCORD VIN:1HGCR2F7XFA070144

Piece Count	WEIGHT	Manifest Quantity	Manifest#	Voyage Number
0000000004	00000009389	00000000004	000001	OMRDQ

Trade Update Date	Carrier Code	Conveyance Id	Conveyance Id Qualifier
2023-08-02	CMDU	9295268	03

Foreign Port Of Lading Qualifier	Record Status Indicator	Mode Of Transportation
K	N	VESSEL, non-container

Container Description Sequence Number	Container Info From Type 20 Record
001	CN=TCKU6353393 L=04000 H=00000900 W=00000800 TYPE=4500 LOAD-STATUS=L TYPE-Of-SVC=Pier to Pier